

Franciscus Dylan Rosario,
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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802
SUPPLEMENTAL REQUEST
FOR JUDICIAL NOTICE

**AUTHORITY TO FILE AND AUTHORITY OF THE CLERK TO AC-
CEPT**

1. Plaintiff appears in propria persona under Code of Civil Procedure section 1014 and Cal. Const. art. I, sections 3 and 16.
2. This paper is filed under Evidence Code section 453; Evidence Code sections 452, subdivision (d) and 452, subdivision (h); California Rules of Court, rule 3.1113, subdivision (l); and California Rules of Court, rule 3.1306, subdivision (c).
3. The Clerk's authority to accept this paper is under Government Code sections 68150 and 69845 and California Rules of Court, rules 2.100 through 2.111, 2.118, 2.119, 2.256, and 2.257. Rejection is limited to the enumerated technical grounds in California Rules of Court, rules 2.118 and 2.119; this paper does not present any of those grounds.

1 4. The Court’s authority to consider the substance is under *Sosinsky v. Grant* (1992) 6 Cal.App.4th
2 1548, 1564 to 1569; and *Aaronoff v. Martinez-Senftner* (2006) 136 Cal.App.4th 910, 919.

3 5. This paper is timely filed for the June 24, 2026 hearing under Code of Civil Procedure section
4 1005, subdivision (b), and Department 302’s May 13, 2026 scheduling order.

5 **I. REQUEST UNDER EVIDENCE CODE SECTIONS 452, SUBDIVI-**
6 **SIONS (D) AND (H), AND 453**

7 Plaintiff, Franciscus Dylan Rosario, respectfully requests that the Court take judicial notice, under
8 Evidence Code sections 452, subdivisions (d) and (h), and 453, of the existence, filing, contents,
9 and legal effect of the following identified records of the related action *Rosario v. Abdelhalim, et*
10 *al.* (CGC-25-631801), San Francisco Superior Court, Department 301, Hon. Christine Van Aken:

11 **Exhibit 801-A.** Memorandum of Points and Authorities in Support of Defendants’ Special Motion
12 to Strike under Code of Civil Procedure section 425.16, filed in CGC-25-631801 on April 9, 2026
13 (the “801 Anti-SLAPP MPA”). Pin cites of particular relevance: pp. 3 (lines 729 to 738); pp. 6
14 (lines 1040 to 1042, 1065 to 1072); pp. 9 to 11 (lines 1258 to 1290); pp. 9 (lines 1258 to 1274);
15 and p. 11 (lines 1418 to 1424).

16 **Exhibit 801-B.** Memorandum of Points and Authorities in Support of Defendants’ Demurrer to the
17 First Amended Complaint, filed in CGC-25-631801 on April 13, 2026 (the “801 Demurrer MPA”).
18 Pin cites of particular relevance: pp. 3 to 4 (lines 655 to 735); pp. 5 to 6 (lines 925 to 1005).

19 **Exhibit 801-C.** Reply to Plaintiff’s Opposition to Defendants’ Special Motion to Strike, filed in
20 CGC-25-631801 on May 5, 2026 (the “801 Anti-SLAPP Reply”). Pin cites of particular relevance:
21 pp. 2 to 5 (lines 174 to 260) and p. 3 (statement that file transfer is “communicative” conduct within
22 the anti-SLAPP statute).

23 **Exhibit 801-D.** May 12, 2026 minute order of Department 301 in CGC-25-631801, granting the
24 special motion to strike under Code of Civil Procedure section 425.16, as entered on the public
25 docket of CGC-25-631801. The official PDF minute order shall be substituted for chambers lodg-
26 ing upon retrieval from the San Francisco Superior Court portal; the official minute order is the
27 same record this Department’s May 13, 2026 minute order references in continuing the consoli-
28 dated motion calendar to June 24, 2026.

1 **Exhibit 801-E.** Notice of Related Case filings under California Rules of Court, rule 3.300, identi-
2 fying CGC-25-631801 and CGC-25-631802 as related, as docketed in each action’s public register.

3 **Exhibit 801-F.** Signature blocks, firm letterhead, and bar numbers identifying Porter Scott, A
4 Professional Corporation, including Chad S. Tapp (SBN 214898) and Tyler J. O’Connell (SBN
5 346673), as counsel of record on every defense filing identified in Exhibits 801-A, 801-B, and
6 801-C, as well as on the operative defense filings in CGC-25-631802 in this Department.

7 **Exhibit 801-G.** Defendant Subhi Abdelhalim’s Motion in Limine No. 6 (MIL 6) to Exclude
8 Recorded Materials, Photographs, or Documents Offered by Plaintiff That Were Not Produced
9 in Discovery, filed in *Rosario v. Abdelhalim* (CGC-21-594102) on January 17, 2025, FSX Trans-
10 action No. 80936030.

11 **Exhibit 801-H.** Defendant Subhi Abdelhalim’s Motion in Limine No. 17 (MIL 17) to Preclude
12 Plaintiff from Using or Referencing an Alleged 911 Transcript Log and Audio Recording, filed in
13 *Rosario v. Abdelhalim* (CGC-21-594102) on January 17, 2025, FSX Transaction No. 80936053;
14 CTX chunk 005, pages 401 to 500, lines 1182 to 1331.

15 The noticed fact as to each item above is that CSAA made the identified litigation-position state-
16 ments, sought relief based on them, and obtained relief after advancing them. Plaintiff does not
17 request that the Court take notice that every factual assertion embedded in those statements is true.
18 Plaintiff requests notice only of the existence, contents, legal effect, and adopted litigation posi-
19 tion of each noticed record, consistent with *Sosinsky v. Grant* (1992) 6 Cal.App.4th 1548, 1564 to
20 1569.

21 **II. SCOPE OF NOTICE REQUESTED**

22 Plaintiff requests judicial notice of the existence, filing, contents, and legal effect of the noticed
23 records, including the existence and content of the May 12 Order’s grant of the 801 special motion
24 to strike, and the existence and content of the 801 Anti-SLAPP MPA, 801 Demurrer MPA, and 801
25 Anti-SLAPP Reply pin cites identified above.

26 Plaintiff does not request judicial notice of the truth of every factual recital contained inside those
27 records. (See *Sosinsky v. Grant* (1992) 6 Cal.App.4th 1548, 1564 to 1569; *Aaronoff v. Martinez-*
28 *Senftner* (2006) 136 Cal.App.4th 910, 919 [judicial notice extends to existence of court records

1 and orders, not to truth of disputed factual assertions therein].) The judicial estoppel application
2 supported by the accompanying memorandum is a separate equitable inquiry that does not require
3 the Court to resolve any disputed factual recital.

4 The noticed fact is that CSAA made the litigation-position statements, sought relief based on them,
5 and obtained relief after advancing them. Plaintiff does not request notice that every factual asser-
6 tion embedded in those statements is true. Plaintiff requests notice of the existence, contents, legal
7 effect, and adopted litigation position reflected in the records, including CSAA's use of quoted
8 pleaded acts as the protected conduct and operative motion premise in 801.

9 **III. AUTHORITIES SUPPORTING JUDICIAL NOTICE**

10 **Evidence Code section 452, subdivision (d).** "Records of (1) any court of this state or (2) any
11 court of record of the United States or of any state of the United States" are subject to judicial
12 notice. Each Exhibit 801-A through 801-H is a court record of this state.

13 **Evidence Code section 452, subdivision (h).** "Facts and propositions that are not reasonably sub-
14 ject to dispute and are capable of immediate and accurate determination by resort to sources of
15 reasonably indisputable accuracy." The existence and contents of the noticed records are indepen-
16 dently verifiable from the SFTC portal and from each party's certified service set.

17 **Evidence Code section 453.** Plaintiff has provided each adverse party with sufficient notice of the
18 request, through this filing and through service of the accompanying notice and memorandum, and
19 has supplied the Court with sufficient information to enable it to take judicial notice of each matter.

20 **Evidence Code section 451, subdivision (a).** To the extent that any portion of the noticed records
21 reflects the language of California statutes, decisional rules, or rules of court (such as the recital
22 of Code of Civil Procedure section 425.16, subdivisions (e)(1) and (e)(2)), judicial notice is also
23 proper as a matter of law.

24 **IV. RELATIONSHIP TO THE ACCOMPANYING MEMORANDUM**

25 The judicial-notice request is the procedural vehicle by which the noticed 801 records are placed
26 before this Department for the cross-case judicial estoppel application set forth in the accompany-
27 ing memorandum (filing item 02). The memorandum identifies accepted 801 sub-positions (Mem-
28 orandum, Section IV), inconsistent 802 positions (Memorandum, Section V), seven rank-ordered

1 contradiction nodes plus Layer B and constructive petitioning Super Ranks (Memorandum, Section
2 VI), and operative lock-points on what CSAA may argue at the June 24, 2026 hearing (Memoran-
3 dum, Section VII).

4 This Court need not, and Plaintiff does not ask the Court to, decide the truth of any disputed factual
5 recital in the noticed 801 records, or to revisit or reconsider the May 12 Order entered in Dept. 301.
6 The Court is asked only to notice the existence, filing, contents, and legal effect of the records, and
7 then to apply judicial estoppel under *Aguilar v. Lerner* (2004) 32 Cal.4th 974, 986 to 987, and
8 *Jackson v. County of Los Angeles* (1997) 60 Cal.App.4th 171, 183, on the noticed record.

9 **V. PROPOSED ORDER LANGUAGE**

10 Plaintiff respectfully proposes that the Court enter the following:

11 “The Court takes judicial notice under Evidence Code sections 452, subdivisions (d) and (h), and
12 453, of Exhibits 801-A through 801-H to Plaintiff’s Supplemental Request for Judicial Notice.
13 Judicial notice is taken of the existence, filing, contents, and legal effect of the noticed records
14 only, and not of the truth of any disputed factual recital within those records. This judicial-notice
15 ruling supports the Court’s separate equitable analysis under *Aguilar* and *Jackson* in connection
16 with Plaintiff’s Notice of Cross-Case Judicial Estoppel Facts.”

17 **VI. SERVICE**

18 This Request and the noticed exhibits are served on Defendant’s counsel of record (Mark G. Tapp,
19 Tyler J. O’Connell, Mason Schubert, and Sarah J. Blithe, Porter Scott, P.C.) by electronic mail per
20 Code of Civil Procedure section 1010.6 and California Rules of Court, rule 1.21, with a Proof of
21 Service (POS-050) filed contemporaneously.

22 **VII. EXHIBIT ATTACHMENT NOTE**

23 The exhibits are tendered with this Request as a separate appendix volume. Where a docketed PDF
24 is not yet retrievable from the SFTC portal in time for the LR 2.7B chambers floor, Plaintiff will
25 lodge with chambers a placeholder cover sheet identifying the noticed record by docket sequence
26 and substituting the verified PDF when retrieved.

Dated: June 24, 2026

A handwritten signature in blue ink, appearing to read "Franciscus" followed by a stylized flourish and a small circle.

Franciscus Dylan Rosario
Plaintiff, In Pro Per

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